AT A GLANCE

Requested by the ITRE committee

Study in Focus

European Parliament

Interplay between the AI Act and the EU digital legislative framework

An exploration of the AI Act and other crucial EU digital legislation, with reflections and suggestions for possible regulatory evolutions

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Context

The Artificial Intelligence Act (AI Act), adopted in June 2024, is the world's first comprehensive regulatory framework for AI. It sits at the centre of the EU's broader digital rulebook, alongside the General Data Protection Regulation (GDPR), the Data Act, the Digital Services Act (DSA), the Digital Markets Act (DMA), the Cyber Resilience Act (CRA), and the NIS2 Directive. Together, these laws aim to promote safety, trust, and competitiveness in Europe's digital economy. However, questions arise about how they interact and whether their combined effect strengthens or burdens the EU's AI ecosystem.

The full study[1] examines how the AI Act interrelates with other EU digital instruments and how their cumulative obligations affect innovation, coherence, and competitiveness in Europe's AI market.

Background – the AI Act



The AI Act is built upon a risk-based logic. It bans certain AI practices, imposes stringent duties on high-risk AI systems, requires transparency for specified use cases, and sets standalone obligations for general-purpose AI models (including those with systemic risk). The regulation draws substantially from the EU's product safety legislation model (under the New Legislative Framework), while layering on novel requirements related to fundamental rights impact assessments, traceability, and oversight.

Yet, several tensions are evident. Firstly, the Act stretches traditional product safety logic into less determinate domains such as human rights compliance, which may prove difficult to assess using conventional conformity mechanisms. Secondly, the regulation's applicability to both AI system providers and deployers imposes complex chains of responsibility that may be difficult to navigate, particularly for SMEs or non-specialist users. Thirdly, the definition and classification of high-risk systems rely on Annex-based lists and subjective assessments of harm potential, thereby introducing legal ambiguity.

Finally, while the Act purports to promote innovation (through regulatory sandboxes, open-source exemptions, and lighter regimes for non-systemic GPAIs), the overall framework still largely centres on mitigating harms, often through prescriptive obligations.

Interactions with other EU digital legislation

The AI Act does not operate in isolation. Its obligations frequently overlap with those in adjacent regulatory instruments. The study identifies a number of frictions and challenges in this interplay:

GDPR: The AI Act introduces requirements for fundamental rights impact assessments in cases that often also trigger data protection impact assessments under the GDPR. These instruments differ in scope, supervision, and procedural requirements,

Policy Department for Transformation, Innovation and Health
Directorate-General for Economy, Transformation and Industry
Authors: : Hans GRAUX, Krzysztof GARSTKA, Nayana MURALI, Jonathan CAVE, Maarten BOTTERMAN
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creating duplication and uncertainty. Transparency and logging obligations are also redundant across both regimes. Moreover, there is ambiguity over how controllers and providers should manage rights of access, rectification, and erasure when personal data becomes embedded in complex AI models.

Data Act: While the AI Act governs the design and deployment of AI systems, the Data Act ensures access to and portability of data generated by connected products and services. AI providers may be data holders under the Data Act and simultaneously subject to obligations under the AI Act. The cumulative compliance load is significant, especially in real-world testing or in contexts involving third-country data transfers.

Cybersecurity and the CRA: High-risk AI systems must meet certain cybersecurity standards. These may overlap with those imposed by the Cyber Resilience Act, which introduces mandatory cybersecurity requirements for all digital products. While the CRA provides for presumptions of AI Act compliance where its requirements are met, the partial alignment between the two frameworks leaves room for interpretative uncertainty.

DSA and DMA: Intermediary services (such as online platforms and search engines) that deploy or provide AI systems and models, e.g., in recommender systems or moderation tools, face increased transparency obligations that may overlap. Very large online platforms and search engines may face simultaneous risk-assessment obligations under the AI Act and the DSA, especially where general-purpose AI models are provided through the intermediary service. The DMA's provisions on data access, interoperability, and anti-self-preferencing could be relevant to AI APIs or foundation models offered by gatekeepers. However, AI systems are not yet designated as core platform services under the DMA, limiting the scope of these interactions in practice.

NIS2 Directive: Essential and important entities under NIS2 that develop or deploy AI systems must comply with both cybersecurity requirements and AI-specific risk management frameworks. The overlap is especially pronounced in incident reporting obligations and the governance of supply chain risks.

The cumulative effect of the EU's digital legislation, although rooted in legitimate policy goals, risks burdening European AI innovators disproportionately.

Recommendations

In light of the identified frictions, the study advances several reflections for future legislative and policy development:

Short-term: Encourage joint guidance and coordinated enforcement practices among supervisory bodies. Promote mutual recognition of assessments (e.g. DPIAs and FRIAs) and harmonised sandbox procedures across Member States;

Medium-term: Consider light-touch legislative amendments to clarify role definitions, streamline overlapping obligations (particularly in fundamental rights and cybersecurity domains), and enhance the executability of rights in AI contexts; and

Long-term: Re-examine the EU's digital regulatory architecture with a view to consolidation, simplification, and strategic coherence. Foster an integrated approach that enables agile compliance for innovators without compromising the Union's fundamental rights and safety values.

By refining the interplay between digital legislative instruments, the EU can ensure that its regulatory model not only safeguards its constitutional values but also enables the emergence of a globally competitive and sovereign AI industry.

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[1] Graux, H., Garstka, K., Murali, N., Cave, N., Botterman, M., 2025, *Interplay between the AI Act and the EU digital legislative framework*, publication for the Parliament's Committee on Industry, Research and Energy (ITRE), Policy Department for Transformation, Innovation and Health, European Parliament, Luxembourg.
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Administrator responsible: Matteo CIUCCI; Editorial assistant: Irene VERNACOTOLA
Contact: ecti-poldep-b@europarl.europa.eu
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